malice can be established from Defendant's alleged knowledge of the falsity of his allegations at the time they were made. This proceeding for a restraining order is alleged to have been "dismissed … for lack of merit". (*Id*. at ¶ 5.)

The demurrer to Plaintiff's second cause of action for intentional infliction of emotional distress and third cause of action for negligent infliction of emotional distress is sustained without leave to amend. Both causes of action are barred by the litigation privilege. Any communication made in the initiation or course of any proceeding authorized by law is privileged. (Civ. Code § 47(b).) The litigation privilege applies to the communicative act of filing pleadings in litigation. (*Action Apartment Ass'n, Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1248.) The privilege is ***absolute***, even upon a showing of malice, barring all tort causes of action except a claim of malicious prosecution. (*Id*. at 1241-1242; *Hagberg v. Cal. Fed. Bank* (2004) 32 Cal.4th 350, 360; *Kimmel v. Goland* (1990) 51 Cal.3d 202, 209.)

The gravamen of Plaintiff's emotional distress causes of action is that "[t]he acts of Defendant in filing and prosecuting said Request for Civil Harassment … were intended to cause and did cause Plaintiff to suffer great shame and embarrassment and great and severe emotional distress." (Complaint, ¶¶ 10, 13.) The conduct alleged to have caused Plaintiff's emotional distress is explicitly alleged to be the filing and prosecution of the request for civil harassment restraining order. (*Ibid*.) The conduct is privileged, barring all torts other than malicious prosecution.

Plaintiff requests the opportunity to amend the complaint but does not explain how he can do so in a manner that would state a cause of action and not be barred by the litigation privilege. A court does not automatically grant leave to amend in the absence of **both** a specific request to amend and an explanation of how the complaint could be amended to cure the deficiencies raised by the demurrer. (*CAMSIIV v. Hunter Technology Corp*. (1991) 230 Cal.App.3d 1525, 1542.)

JACOB STYKEL v. FCA US, LLC and DODGE CHRYSLER JEEP RAM OF VACAVILLE
Case No. CU24-09788

FCA's Motion for Summary Judgment

<u>TENTATIVE RULING</u>

Defendant FCA US, LLC ("FCA") moves for summary judgment, or in the alternative summary adjudication, in its favor against Plaintiff JACOB STYKEL's complaint alleging causes of action for violation of the Song-Beverly Consumer Warranty Act (the "Act") and fraudulent inducement. Summarized, Plaintiff alleges that he purchased a 2020 Ram 3500 (the "Vehicle") under FCA's express warranty, but the Vehicle has defects such that FCA has not conformed it to warranty after a reasonable number of repair attempts. Further, the Vehicle has an engine defect that FCA did not disclose to Plaintiff prior to purchase.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp*. (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid*.) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid*.) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) However, a party may not utilize his own discovery responses as evidence. (Code Civ. Proc., § 2030.250; *Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450.) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker*, *supra*, 3 Cal.3d at p. 181.)

If the party opposite a motion for summary judgment fails to file a separate statement of undisputed material facts, the court has discretion to grant the motion. (Code Civ. Proc., § 437c, subd. (b)(3).) However, even where a party fails to file any opposition to a motion for summary judgment, the court may only grant the motion if the moving party has met its burden of proof. (*Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086.) A defendant's summary judgment motion in particular meets its burden of showing there is no merit to the cause(s) of action if the defendant shows that any element of the cause(s) of action cannot be proven or that there is a complete defense. (Code Civ. Proc., §437c, subd. (p)(2).) Further, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Song-Beverly Consumer Warranty Act. The Act was enacted to address the difficulties consumers faced in enforcing express warranties. (*Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 484.) The Act protects purchasers of consumer goods by requiring specified implied warranties, placing strict limitations on when and how a manufacturer may disclaim those implied warranties, and providing mechanisms to ensure manufacturers live up to the terms of any express warranties. (*Ibid*.)

However, the Act does not apply to goods that were not purchased in California. (*Id*. at pp. 483, 487.)

That fact defeats all of Plaintiff's claims under the Act. Plaintiff purchased the Vehicle in Idaho from Dennis Dillon Dodge Chrysler Jeep, not in California. (UMF #1-2.) The governmental interest test is inapplicable here. The governmental interest test applies in situations where there is a choice of law issue. (*Kearney v. Salomon Smith Barney, Inc.* (2006) 39 Cal.4th 95, 100.) The situation before the court is not about choosing to apply Idaho law over California law, or vice versa. It is about the fact that the California law under which Plaintiff brings most of his causes of action does not apply to goods bought outside of California.

Civil Code section 1791, subdivision (n) states that a "sale" within the meaning of the Act means "the passing of title from the seller to the buyer for a price" or "a consignment for sale." However, California law holds that title passes on delivery of goods. (*Davis v. Newmar Corp.* (2006) 136 Cal.App.4th 275, 278.) FCA's evidence before the court shows that Plaintiff received the Vehicle in Idaho. (Declaration of Skyler Lee Souza in Support of Motion at ¶ 6, Exhibits B-C [repair orders from Idaho dealership showing predelivery and delivery checklists and cleaning].) Plaintiff presents no evidence raising a triable issue of material fact in response. Thus the Act does not apply to this case.

Fraudulent Inducement. Plaintiff's tort claim for fraudulent inducement is not barred by the fact that the Vehicle was purchased in Idaho. It is undisputed that Plaintiff purchased the vehicle in Idaho from an authorized dealership. (See UMF #1-2.) It is also not barred by the economic loss rule.

Under California law, the economic loss rule does not bar a plaintiff's claim for fraudulent inducement by concealment which is an exception to the economic loss rule recognized in *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988. (*Dhital v. Nissan North America Inc.* (2022) 84 Cal.App.5th 828, 835 [concealment-based claims for fraudulent inducement are not barred by the economic loss rule].) Plaintiff's fraudulent inducement claim is not based upon alleged conduct committed during the contractual relationship, but presale conduct in which defendant allegedly concealed a known defect in its vehicle. This alleged breach of duty giving rise to tort liability is independent of the underlying contract and is not a cause of action seeking to recover for economic loss due to "disappointed expectations." (*Id.* at pp. 840-841)

Conclusion. The court grants FCA's motion for summary adjudication as to the first, second, third and fourth causes of action. The motion is denied with regard to Plaintiff's sixth cause of action for fraudulent inducement.

CHAVEZ v. RIGHT NOW AIR
Case No. CU24-02605

Demurrer to Answer filed by Plaintiff

<u>TENTATIVE RULING</u>

Plaintiff's demurrer to defendant's answer to the second amended complaint is OVERRULED.